

## IN CONTEXT

## FOCUS

## Constitutional government

## BEFORE

**1100** The Coronation Charter of Henry I, king of England, pledges to end all unjust royal practices.

**1166** Henry II's Assize of Clarendon extends the Crown's power against baronial courts.

**1214** King John finally loses control of Normandy after the Battle of Bouvines in Flanders.

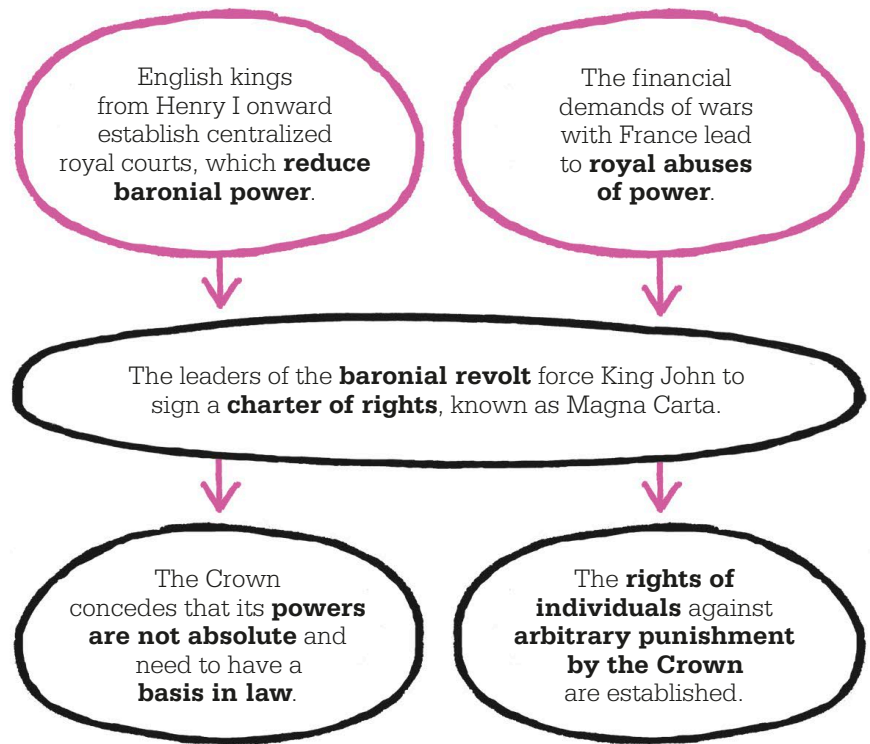
## AFTER

**1216** Magna Carta is reissued on the accession of Henry III.

**1297** Edward I confirms Magna Carta as statute law.

**1969** An act is passed that repeals most parts of Magna Carta still in force, leaving only four chapters in operation.

**T**he monarchs of medieval England had a problem. The feudal system instigated from 1066 by William I was breaking down. Under this system, barons (nobles) were the superior "vassals" who swore allegiance to the Crown, provided fighting men, and paid dues to the king in return for his protection and land (called fiefs or fiefdoms). Barons, too, had vassals—often trusted knights—who swore fealty (allegiance) to their lord and sometimes oversaw their lands. Below them were peasants—tenant farmers who might be free men but were mostly "villeins," legally tied to the lord. At the system's base were serfs, who were owned by the lord. Serfs and peasants had no rights.



From the 1190s, the revenue that a king could raise from feudal dues and his own estates was wholly inadequate to fund the wars pursued to defend the land England held in France. The king extorted increasing funds from his barons, who became ever more embittered.

**Legal abuses under John**

England's justice system was in need of reform. The legal processes that had suited earlier kings were under severe strain by the 12th century. Henry II's reforms provided the nucleus of a central court system and the beginnings of a codification of common law (see box, p.70). The reforms, however, limited the power of the barons' local courts, and the concessions offered by the reforms could be abused or withdrawn at will by a less enlightened king—notably John, who assumed the throne in 1199.

A series of disastrous military expeditions in France ended with the loss of Normandy in 1204 and left John critically short of money. To finance a new army, he turned to wholesale abuse of feudal dues. Scutage (a cash levy in lieu of military service) was increased and raised even when no service was required. The royal courts of law grew more powerful and were used to levy fines on questionable grounds. The dues exacted when a baron inherited his position and land rose enormously. The sums extorted from barons to avoid the "king's displeasure" also escalated. Both contributed to an increase in the royal revenues to £145,000 in 1211 (around 10 times more than had been typical in the 1190s).

Another war in France from 1214 to 1215 squandered the money and eroded any residual goodwill among the barons. There was a contractual